

COPY

CONCILIATION OUTCOME CERTIFICATE



ACCS

Accident Compensation
Conciliation Service

Worker:	Richard Mclean
Reference No:	07/7386
Claim No:	09060103251
Employer:	Melbourne Metropolitan Health Service
Authorised agent of the Victorian WorkCover Authority (WorkCover Agent):	Allianz Australia Worker's Compensation (Vic) Limited
Section of Act/Nature of Dispute:	109 Claim for compensation

This dispute relates to a decision dated 6 June 2007 to reject a claim for weekly payments.

A conciliation conference was held on 12 November 2007.

In this dispute regarding weekly payments, I am not able to bring the parties to agreement.

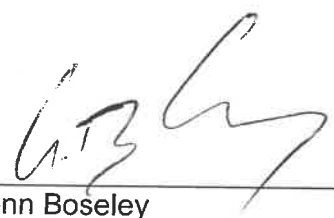
I am satisfied that there is an arguable case in support of the denial of liability to make or continue to make weekly payments.

Accordingly, under section 59(10), I am taken to be satisfied that there is a genuine dispute with respect to the liability to make or continue to make weekly payments.

I certify that the claimant has taken all reasonable steps to settle the dispute.

Application may be made to the County Court or the Magistrates Court to determine the matter.

Signed:


Glenn Boseley
(Conciliation Officer)

Date: 12 November 2007

References to "the Act" and to sections refer to the Accident Compensation Act 1985.

Allianz Australia Workers' Compensation (Victoria) Limited ACN 059 835 791

Authorised Agent of the Victorian WorkCover Authority
6 June 2007

Richard McLean
33 ELMBANK DRIVE
KEYSBOROUGH 3173

Dear Mr McLean,

Notice of Rejection of WorkCover Claim

CLAIM NUMBER: 09-06-103251

EMPLOYER: MELBOURNE METROPOLITAN HEALTH SERVICE

DATE OF INJURY: 1 OCTOBER 2005

Under the WorkCover system, compensation is provided to all workers who qualify under the provisions of the *Accident Compensation Act 1985* ("the Act"). Entitlement to compensation is assessed according to the relevant sections of the legislation.

This is a notice under Section 109 of the Act from Allianz Australia Workers' Compensation (Victoria) Ltd – Authorised Agent to advise that your claim for weekly payments under this Act has been rejected.

After considering all available information, pursuant to Section 109, your claim has been rejected because:

- You did not sustain an injury within the meaning of the Act.
- Your claimed injury did not arise out of or in the course of employment.
- Your employment was not a significant contributing factor to the claimed injury.
- Your claimed injury has not resulted in or materially contributed to an incapacity for work.
- The claim is deemed not to have been made because the claim was made after you ceased to be employed by MELBOURNE METROPOLITAN HEALTH SERVICE and Allianz Australia Workers' Compensation is not satisfied that you could not reasonably have made the claim while employed by MELBOURNE METROPOLITAN HEALTH SERVICE. (section 103(5))
- You did not give, serve or lodge the claim as soon as practicable after the incapacity arising from the injury became known and Allianz has decided not to waive or extend the time limit to enable the claim for compensation to be made (sections 103 (7)&(8))
- You are not entitled to recover compensation under the Act because you did not give notice of the injury within 30 days after you became aware of the injury and Allianz has decided not to waive or extend the time limit (sections 102(1)(5)&(6))

Reasons for decision

- a) You are a 34-year-old male who commenced employment with MELBOURNE METROPOLITAN HEALTH SERVICE in November 2004.
- b) On 10 May 2007, Allianz Australia Workers Compensation received a claim alleging you

GPO Box 80
Melbourne VIC 3001

Claims Enquiries
Telephone 61 3 9234 3800
Facsimile 61 3 9234 3760

Policy Enquiries
Telephone 61 3 9234 3285
Facsimile 61 3 9234 3759

Premium Payment Enquiries
Telephone 61 3 9234 3286
Facsimile 61 3 9234 3759

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Authorised Agent of the Victorian WorkCover Authority

sustained hallucinations, idea's of reference, delusion, lethargy, depression and mania.

c) You were medically examined by Dr Turecek on 24 May 2007. Dr Turecek stated... ✓

"The worker's presentation and mental status examination confirm the presence of a Chronic Schizophrenic Illness (Paranoid type). This is a pre-existing illness which started in his early 20's. He has had continuous treatment for his condition.

It was difficult to identify any particular events that had occurred in the course of his work to explain the deterioration some time in 2006. There was no indication from the information that he supplied that his Managers were nothing but helpful in trying to assist him with the tasks of his position. I noted his explanation that he decided to put in his WorkCover claim because of financial need and the advice from a legal representative – on the grounds that his condition had deteriorated in the course of his work. However from the clinical information available, I was not able to clarify any connection between his employment and the deterioration that he described in 2006.

I confirm that his condition has required long term psychiatric attention and treatment. He has been under the care of his treating psychiatrist on regular basis and a number of antipsychotic medications have been tried.

From a clinical perspective, there is no clear connection between his current presentation and the difficulties that he experienced in the course of his employment. His prognosis is that of his underlying psychiatric condition.

From a psychiatric perspective, there is insufficient evidence to indicate any connection with his previous employment.

d) A Circumstance Investigation Report was obtained from Lyonswood on 4 June 2007. ✓

Their report stated...

Candidly, and without hesitation (the claimant) admitted, "my condition was already present before I commenced employment as permanent part-time Consumer Consultant with North West Area Mental Health Service. However, the extreme workload and pressure that I experienced in performance of my duties contributed to exacerbation of my condition, in particular the depression, bipolar disorder and rapid cycle mania." Openly (the claimant) informed us that, prior to commencing work for the insured, "I can advise that I first received treatment for schizophrenia at 22 years of age. Before that I had a long descent into illness, which was exacerbated or contributed to by cannabis use from my mid teens to age 21 years. In addition, I occasionally used ecstasy while I was employed at the Herald Sun."

The WorkCover Worker's Claim Form which was signed by the Claimant on 31st April 2007 detailed a brain condition involving hallucinations, ideas of reference delusion, lethargy, depression and mania.

The WorkCover Worker's Claim Form stipulated the injury occurred, "during work" and was first noticed in 1994. The WorkCover Worker's Claim Form stipulated the date of his cessation of work in October 2005.

The WorkCover Worker's Claim Form stipulated the injury occurred in the course of work, while working in the usual workplace.

The Incident Register contains no entry.

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During the interview (the claimant) made the following admission, "I cannot advise when I first consulted a psychiatrist when employed by North West Area Mental Health Service because I have been constantly being treated by psychiatrists since age 22 years."

The Claimant alleged his condition was exacerbated by his extreme workload and pressure, however during the interview of 25th May 2007 the Claimant admitted rarely working overtime.

The Claimant admitted he rarely worked overtime, however his Supervisor, advised he did not work overtime.

The Claimant was employed with the Insured from 8th November 2004 to 31st July 2006 (refer Certificate of Service) or approximately 630 calendar days. Allowing 20 days Annual Leave for approximately 1.5 years means the Claimant was expected to be at work for at least 600 days. Allowing for weekends throughout his employment of approximately 175 days, the Claimant should have been available for work 425 days (not allowing for public holidays). During his employment with the Insured the Claimant had unpaid absences of 243 days, or more that 57% of the available work time. This would appear to rebut the assertion he was "overworked" or had an extreme workload during that time.

- e) A Medical Practitioner Questionnaire was requested from your treating GP, Dr Conception. This was received on 5 June 2007.

Having this decision reviewed

If you disagree with this decision the following options are available:

Internal Review

You may request to have the matter referred for review by a Senior Officer at Allianz. Your file and this decision will be reviewed by a Senior Officer who was not involved in the original decision. You may provide any additional information you think is appropriate. We will pay the reasonable costs of obtaining this information.

Conciliation

You may take the matter to the Accident Compensation Conciliation Service (ACCS). To refer a dispute to ACCS you must lodge a Request for Conciliation form with the Senior Conciliation Officer, ACCS, Level 9, 460 Lonsdale Street, Melbourne, 3000 within 60 days of receiving this letter. The Senior Conciliation Officer may accept a request outside the 60 days but only upon application in appropriate circumstances. Request for Conciliation forms are available from this office or ACCS (telephone 9940 1111 or 1800 635 960). Conciliation is a free service. Please see the attached brochure for information regarding the ACCS.

Court Application

Once you have been through the conciliation process, and if you are still not happy with the decision you may then commence court proceedings. To commence court proceedings, the conciliation officer must have issued a certificate stating that all reasonable steps have been taken to settle the dispute. A solicitor can advise you about legal action.

What you need to do

Please call us if you have any questions about our decision. We are happy to assist.

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Where to get more information

If you have any further queries regarding this matter, please contact Bonnie Faulks on 03 9234 3447.

Yours sincerely

Per:

Bonnie Faulks

Senior Case Manager

Direct Phone Number: 03 9234 3447

Direct Facsimile Number: 03 8615 8072

Allianz Australia Workers' Compensation (Victoria) Limited

For and on behalf of the Victorian WorkCover Authority